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IN THE HIGH COURT OF TANZANIA
AT DAR ES SALAAM

MISC CIVIL CAUSE NO. 90 OF 1991

FESTO BALEGELE AND 794 OTHERS — APPLICANTS

v.

DSM CITY COUNCIL — RESPONDENT

RULING

RUBAMA, S:-

The application by FESTO BALEGELE and 794 others against the Dar es Salaam City Council made under s.2(2) of the Judicature and Application of Laws Ordinance, Cap. 453; the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, Cap. 560 as amended by the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (Amendment) Act, 1968 and s. 95 of the Civil Procedure Code, 1966 is for the following Orders:

(i) an Order of certiorari to remove to the High Court and quash the decision of the Respondent to dump the City's waste and refuse at Kunduchi Mtongani;

(ii) an Order of Prohibition to prohibit the Respondent from continuing to carry out its decision to use Kunduchi - Mtongani as a refuse dumping site.

(iii) an Order of Mandamus to direct the Respondent to discharge its function properly and according to law by establishing an appropriate refuse dumping site and using it and

(iv) an Order that the costs of this Application be met by the Respondent.

The application is supported by a thirty three (33) paragraphed affidavit sworn by the said FESTO BALEGELE and opposed by a twenty four (24) paragraphed counter affidavit sworn by ALOYSIUS MUJULIZI SSEFUNKUUMA, a soliciter in the employment of the respondent. In the counter affidavit, the respondent also gave notice that at the hearing of the application by Festo Balegele and 794 others, the respondent was going to raise a preliminary objection on points of law. Paragraph 2 of the counter affidavit detailed the nature of the preliminary objection on points of law to be raised. This was duly raised on the hearing date. Both Mr. Kakoti and Mr. Mujulizi argued the respondent's case on the raised preliminary objection. Mr. Maikusa replied for the applicants'. Briefly the raised preliminary objection was to the effect that the application before the court was misconceived and thus qualified to be dismissed. I reserved ruling: when I came to give it, it was to the effect that the raised preliminary objection was without merit. I dismissed and undertook to give my reasons for that decision "in the final Order of the Court."

In the matter of an Application for Orders of Certiorari, Prohibition and Mandamus by Abdi Athumani and 9 others v. The District Commissioner of Tunduru District, The District Executive Director of Tunduru district, The District Commissioner of Songea District and the District Executive Director of Songea District, consolidated Miscellaneous Civil Causes No. 2 and 3 of 1987 (Mtwara Registry) unreported), this Court (Rubama, J.) had addressed itself on the issue that had been raised by the respondent as a preliminary point in the matter now before the court. I still hold that finding valid and follow it in this application.

In the case of Abdi Athumani and 9 others (supra), the applicants had sought and obtained Orders of Certiorari Prohibition and Mandamus. Some of them had been refused trading licences by the appropriate licencing authorities not in accordance with the Business Licencing Act No. 25 of 1972. Eight of the Applicant had been served with Removal Orders under the Township (Removal of Undesirable Persons) Ordinance. I stated:

".... In entertaining these applications by the ten applicants, the Court has usurped no powers . This court has had powers to entertain such applications for ages: see Northern Tanzania Farmers' Cooperative Society v. W.H. Shellukindo 1978 LET n. 36. This court, a creature of statute in entertaining such applications performs for the benefit of the people. As was stated by Brett, L.J. in R.v. Local Government Board (1982) 10 QBD 309 at 321 that:

'wherever the legislature entrusts to any body of persons other than its superior courts the power of imposing an obligation upon individuals, the courts ought to exercise as widely as they can the power of controlling those bodies.

It is one of High Court's duties to exercise supervisory powers on bodies other than a superior court that are entrusted by Parliament to take decisions that affect the rights of the people to ensure that these bodies perform within the limits set to them by the Parliament. This ensures consistent application of the country's entrenched principles of freedom and justice by the Government agencies. The Parliament's decision ensures avoidance of this Republic's duties being executed on people's whims where people are reduced to numbers without any personal regard to hearship [sic] of the very people said by the officials to be serving. These supervisory powers ensures existence of tangible values like justice, truth, consistency within which are embedded elements such as compassion and dedication. The grant by the Parliament of these supervisory powers ensures that expediency or 'might is right' - forces that are always inconsistent and without permanency are eliminated. In entertaining such applications, the High Court does not set itself to embarrass or belittle the Government or its Agencies, in order for itself to look more important in the eyes of the people. As stated, the supervisory powers have been granted to the High Court by the Government and common sense dictates that Government would not have put itself in such untenable position."

The following facts are not in dispute:

(i) that Kunduchi Mtongani is within the area of jurisdiction of the Dar es Salaam City Council;

(ii) that Kunduchi - Mtongani is zoned in the respondent's Master Plan as a residential area;

(iii) that the applicants reside at Kunduchi Mtongani;

(iv) that the respondent has been dumping the City's collected refuse and waste at Kunduchi Mtongani and instead of at one of the five sites designated in the City's Master Plan for dumping the collected City's refuse and waste effective September, 1991 soon following this Court's order in Civil Case 299/88 (Dar es Salaam Registry) in which the respondent was ordered not to dump refuse at Tabata;

(v) that the dumped refuse and waste at Kunduchi Mtongani is presently burning emanating much smoke covering a wide area;

(vi) that the dumped refuse and waste emanates offensive smell and has attracted swarms of flies.

Mr. Mwaikusa correctly submitted that refuse collection and its disposal was one of the respondent's mandatory duties under the Local Government (Urban Authorities) Act, 1982. He further correctly submitted that the respondent was required by law to perform its statutory duties lawfully. Mr. Mwaikusa submitted however that the respondent in disposing of the collected city's refuse and waste at Kunduchi Mtongani was thereby executing its statutory duty unlawfully. Elaborating on this submission, Mr. Mwaikusa quoted to the court several authorities all of which are of persuasive effect. He submitted that the action of dumping the City's collected refuse and waste at Kunduchi Mtongani was ultra vires the Act as the Dar es Salaam City Council, the respondent:-

(i) had not taken into consideration the relevant factors in coming to its decision: Associated Provincial Picture Houses Limited v. Wednesbury Cooperation (1948) IKB 223. Mr. Mwaikusa argued that the relevant factors that the respondent should have considered ins electing Kunduchi Mtongani as the City's collected refuse and waste dumping area were the general land development plan of the area; that Kunduchi Mtongani was zoned a residential area; that Kunduchi Mtongani was not within one of five sites zoned for garbage disposal (ii) choice of the area was without plausible justification. Mr. Mwaikusa pointed out that it was one of the duties of the respondent to enforce as provided by ss.35 and 36 of the Town and Country Planning Ordinance, Cap. 378 land development plan. The counsel submitted that the respondent was dumping refuse at an area marked residential and where in fact people are residing thereby posing a health hazard and nuisance to the residents. By this decision, the counsel went on to submit, the place which is at any rate too small for the requirements of the respondent has been an attraction of swarms of flies and is offensively smelly thereby making life of the residents extremely unbearable. To compound this state, the refuse has been put on fire emanating smoke. Mr. Mwaikisa concluded that Kunduchi Mtongari as a refuse dumping site was too small for the purpose and the methods of the disposal of the refuse primitive [sic]. The place has been turned into a health hazard and a nuisance to its residents. The decision of the respondent, Mr. Mwaikusa went on to submit, looked at objectively, was devoid of any plausible justification that could have made any reasonable body of persons reach it: Bromley London Borough Council v. London Council and Another (1982) I All ER 129. (iii) appeared to have reached its decision of the choice of the area through outside dictation. Mr. Mwaikusa submitted that it appeared the respondent was dictated to by the Central Government on the choice of Kunduchi Mtongani as the City's refuse dumping place. As the enabling Act does not permit the respondent to abdicate its powers in favour or another body, Mr. Mwaikusa argued, the act of the respondent was ultra wires the Act. H. Lavender & Son Ltd. v. Minister of

Housing and Local Government (1970) 2 All ER 871.

Mr. Mwaikusa further submitted that the applicants, residents of Kunduchi Mtongani were "aggrieved" and thus with locus standi to apply for the orders of certiorari and prohibition. Regina v. Liverpool Corporation, Ex. parte Liverpool Taxi Fleet Operators' Association and Another (1972) 2 Q.B. 299.

Mr. Mwaikusa lastly prayed for an order of Mandamus by requiring of the respondent (i) stoppage of the nuisance it was causing, (ii) compliance with this Court's Order issued in the case of Joseph D. Kessy and Others v. The City Council of Dar es Salaam Civil. Case No. 299 of 1988 (Dar es Salaam Registry) (unreported) (iii) compliance with the land development plan by selecting one of the five sites designated for the City's disposal of collected refuse and waste as shown in the City's Master Plan.

Mr. Kakoti, the respondent's solicitor submitted that the respondent in disposing of refuse at Kunduchi Mtongani is performing a statutory duty lawfully. In landfilling the abandoned stone quarries at Kunduchi Mtongani, the respondent are "reconditioning" the land through sanitary landfilling. This action was not ultra vires the Act. As for the sought order of Mandamus, by Mr. Kikoti submitted that the applicants had not complied with the conditions preodent for the issue of the Order: Alfred Lakaru v. Town Director (Arusha) (1980 TLR 326 (Maganga, J.).

On the submission by Mr. Mwaikusa that the respondent appeared to be acting on dictation of the Central Government thereby making its action of dumping garbage at Kunduchi Mtongani ultra vires the Act, Mr. Kakoti submitted that it was the duty of the Treasury of the Republic to provide such funds as were adequate for the provision of public health service. On the order of prohibition, Mr. Mujulizi submitted that it was not the intention of the respondent to dispose of refuse at Kunduchi Mtongani indefinitely. The decision to dispose of refuse at the area was a temporary one while the respondent was looking for an alternative place for the dumping refuse. Mr. Mukulini prayed that the court exercise its discretion in favour of the respondent who would otherwise fail to perform its statutory duty of refuse collection and disposal.

I have above dealt with the issue of court's jurisdiction in entertaining applications for orders of certiorari, prohibition and mandamus. It is best that I move on to deal with the issue of the locus standi of the applicants as both Mr. Mwaikusa and Mr. Kakoti had touched the subject in their submissions. It is not disputed that the applicants are residents of Kunduchi Mtongani. This taken together with the several facts that I have outlined above as not disputed make the applicants persons "aggrieved" by the decision of the respondent. I accept the affidavit of Festo Balegele that the residents of Kunduchi Mtongani working through its Committee of which the said Festo Balegele was the secretary and through its Member of Parliament had made representations to the respondent, among others, to stop dumping the City's collected refuse and waste at Kunduchi Mtongani but to no avail. Their representations were not taken seriously.

Taking into consideration the submission of Mr. Mwaikusa on this issue, I find that the applicants resort to this court was in order. As what this Court had said in Abdi Athumani and others v. The District Commissioner of Tunduru District, the District Executive Director of Tunduru District, The District Commissioner of Songea District and the District Executive Director of Songea District (supra) at p. 23 appropriately covers the applicants in the application under consideration. I find it fitting to adopt it here:

"... applicants in resorting to this Court have done nothing wrong or unconstitutional at all. For the applicants to have come to this Court in search of justice have demonstrated their belief in the even handed administration of justice in this Republic. Every citizen has a right when he feels that the Government does not function within the orbit or limits dictated by justice that it-the Government-had set on itself to seek redress in courts of law. A move by citizens such as these ... applicants have taken in search of what they consider as their rights should not be taken as intended to embarrass the Government or its Agencies. ... It is in the interest of all people of good will, reason, foresight, moderation and certainly the Government that one of its institutions clothed with appropriate powers exists to reassure the people that the Republic's admirable objectives and their executions are intact.

On consideration of the affidavit, counter affidavits and the very elaborate and able submissions by the three counsel, I am of the view that the respondent's decision of disposing the City's refuse and waste at Kunduchi Mtongani was ultra vires the Local Government (Urban Authorities) Act, 1982 for the reasons submitted by Mr. Mwaikusa which I accept. Further the manner of disposal of the collected refuse and waste terminates any possible claim by Mr. Kakoti that the respondent are in the process of reconditioning the disused stone quarries at Kunduchi Mtongani. By collecting refuse from all over the City to dump it at Kunduchi Mtongani contrary to the City's Master Plant; that Kunduchi Mtongani is by this Master Plan not zoned as one of the five sites for refuse disposal but zoned residential and that there are several people residing there to whom a nuisance has been created. The place has been made intolerably smelly and dirty with flies all over and the deposited refuse burning and emanating smoke. It is a statutory duty of the City Council, the respondent; to stop nuisance and not

to create it. The submission by Mr. Kakoti that the respondent was respondent was reconditioning the land at Kunduchi Mtongani stands no close examination. What the respondent is doing now is not sanitary landfilling as that process is understood but just refuse dumping. The dumped refuse attracts flies and emanates foul smell. The dumped refuse which has been set on fire emanates smoke which could be a source of danger to the residents' health. It is not material in this regard who has set fire to the dumped refuse: it is its after effects that is of concern here. As to Mr. Mujulizi's submission that the respondent intends to use Kunduchi Mtongani dump temporarily to give itself time to look for and locate another site, I only have to state that the respondent has had a long time to sort out this matter. By the very existence of five sites in its Master Plan for refuse disposal, the question of unpreparedness does not arise. But even if the Master Plan had not provided for the possible sites for refuse dumping, I would still not find merit in the submission of Mr. Mujulizi on the issue of being given time to look for a dumping site. Refuse collection and disposal as one of the statutory duties of the respondent should have been given then priority treatment it deserved. Peoples' health and enjoyment of life are partly dependent on living on healthy surroundings. I would further reject Mr. Mujulizi's submission in this regard for the very reasons stated by Lugakingira, J. in Joseph D. Kessy and others v. The City Council (supra) at p. 15 to 16 of the hand written ruling:

"I will say at once that I have never heard it anywhere for a public authority, or even an individual, to go to court and confidently seek for permission to pollute the environment and endanger peoples' lives, regardless of their number. Such wonders appear to be peculiarly Tanzanian, but I regret to say that it is not given to any court to grant such a prayer. Article 14 of our Constitution provides that every person has a right to live and to protection of his life by the society. It is therefore a contradiction in terms and a denial of this basic right deliberately to expose anybody's life to danger or, what is eminently monstrous, to enlist the assistance of the Court in this infringement."

In view of the findings, this Court brings into court the decision of the respondent of dumping refuse at Kunduchi Mtongani and quashes it. This court further prohibits the Dar es Salaam City Council from continuing to carry out its decision of using Kunduchi Mtongani as a refuse dumping site. This court lastly issues an order of mandamus and directs the Dar es Salaam City Council to discharge its function properly and in accordance with the law by establishing an appropriate refuse dumping site and using it.

The respondent is to bear the costs of this application. Lastly I wish to highlight two points that this Court is not here concerned with the wisdom or, indeed, the fairness of the respondent's decision of selecting Kunduchi Mtongani as the City's dumping place of the collected refuse and waste. All I am concerned with is the legality of that decision: was it within the powers that the Republic's Parliament has conferred by legislation to the Dar es Salaam City Council? Secondly, I wish to emphatically state that I have not come to the above decision lightly. I bear in mind that only on 9th September, 1991, the respondent was ordered by this Court to stop disposal of the City's refuse at Tabata Dump. I take judicial notice of the disorientation that order had caused to the respondent, but I can do nothing in this regard than to express understanding of the feeling and then to apply the law. I can do no better than adopt the poetic and extremely illustrative language of MAKAME, J. (as he then was) in the case of Republic v. Agnes Doris Liundi (1980) TLR 38, 44, to express my view of how my hands are tied:

"... This necessary finding causes me personal anguish, but my powers and my interpretation role are circumscribed by the law. I have to take the law as it is, not as I might personally wish it to be. I have my legal training and professional ethics to be true to my oath of office to be faithful to, and at the end of the day my conscience to live with. As William Shakespeare puts it, "So does conscience make cowards of us all."

YAHYA RUBAMA
JUDGE
3/1/92

Coram - RUBAMA, J
Mr. Maikusa assisted by Mr. Naasoro for the applicants.
Mr. Kaketi assisted by Mr. Mujulizi for the respondents.
Ruling delivered.

YAHYA RUBAMA
JUDGE
3.1.92

JOSEPH D. KESSY AND OTHERS

Versus

THE CITY COUNCIL OF DSM[1]

RULING

LUGAKINGIRA, J.

This was an application for extension of time on a stay of execution in a local battle that has pitched the City Council of Dar es Salaam and the residents of Tabata, a city suburb, since 1988.

On 1 September, 1989, the residents of Tabata obtained a judgement from this court in which the city Council was ordered, inter alia, to cease using the Tabata area for dumping garbago collected in the city, and to construct a dumping ground at a site or place where the dumping activity would not pose a danger to life. This judgment was ranted ex-parte, the City Council having became dilatory in filing a defence. On the following day the council, through its solicitor, filed an application for review of the judgment and another application for staying execution of the judgement. On 7 September the City Solicitor followed up these applications by filing a notice of appeal to what was termed "The High Court of Appeal of Tanzania".

The applications came up for hearing on 26 September and on that day the application for review and the notice of appeal (which were irreconcilable, any way), were withdrawn, The City Solicitor, who was then Mr. Joseph Mbuna, was then heard on the application for stay of execution. He informed the Court hat the council had earmarked a dumping site at Mbagala since 1984 and that It would a minimum of two years to move to that site. He further informed the Court that, in the interim, the council had already commenced establishing three mini-dumps in the three districts of the City and that the exercise would take a minimum of one years. He therefore prayed for execution of judgement to be stayed for one year. the application was hotly contested by Mr. Maira who appeared for the Tabata residents, but in the end it was granted, precisely in appreciation of the promising representations by Mr. Mbuna. The extension was to expire on 31 August, 1990. On 28 August, three days before the extension was to expire, Mr. Mbuna filed an application for a further extension of one year. This time he told the Court that a dumping site had been obtained at Kunduchi Mtongani. He made no further mention of the Mbagala site, be it in his affidavit or in his submissions in court, apart from the general statement that three dumping sites had been identified but had been found unsuitable after technical evaluation. He went on to say that specialised equipment was needed to prepare the Kunduchi Mtongani site and that this had been ordered from Japan. He produced a proforma invoice to that effect and asserted that the equipment had already been paid for.

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[1] High Court of Tanzania at Dar es Salaam, Civil Case No. 299 of 1988.

He said that it would take six months for the equipment to arrive at Dares Salaam and another six months for the some to be cleared, installed and tested hence the prayer for a one-year extension. This application was similarly resisted by Mr. Maira who also observed that, "There is no law which supports the application". He did not elaborate.

The Court reluctantly granted the extension, to expire on 31 August, 1991.
On 30 August, just a day before the extension was to expire, the City Solicitor, now Mr. George Kakoti, filed the present application, this time praying for an extension of three months, At the hearing of the application three days ago he unilaterally reduced the period to two months. He also had a new story. The development of the Kunduchi Mtongani site had fallen out due to lack of funding by the Central Government, and the council's was to disposal experts had fallen back on Mbagala. On 28 August the council's officials sought to take over a site at Mbagala Kizuiani but they were vehemently obstructed by neighbouring residents and excavators. At a meeting held the following day with representatives of the residents it was agreed that the dumping site be shifted to Mbagala Kilungule. Mr. Kakoti Said that it would require construction of a 1.3 km road to reach the agreed site. He also said that the council had already entered into an agreement with a contractor to do the job. In the premises he prayed for two months extension from 1 September.

Mr. Kaira was again at head to resist the application. apart from his general observations on the merits, he submitted that the application was incompetent and ought to be dismissed on two grounds. First, he observe that it was brought under s. 95 of the Civil Procedure Code while there were specific provisions for this type of application, and he named these as 0.21, r. 24 and 0.39, r.5 of the Code. Scondly, he submitted that having regard to the circumstances of this case, it was not open for the Court to stay the operation of the injunction. He argued that the Court was functus in the judgement and had no power to vacate it except a higher court oj appeal. Turning to the merits of the application, Mr. Maira observed that these have been inconsistent representations on behalf of the council since 1989, such that it was risky to believe the latest stery. He added, citing **Roberts v. Gwyrafai D.C.** (1899) 2 Ch. 608, that his clients had established their right and had established that the council was violating that right, and submitted that the Court was bound to protect his clients against that violation. And he thought that the council was being lackadaisical in its efforts to construct the access road for there were several public and private firms which were taking sand from the vicinity of the proposed site and which could be mobilised to work on the road. In so far as I could gather, Mr. Kakoti, in reply, touched on the appropriate provisions applicagle in these applications but he did volunteer any opinion on the jurisdiction of the Court to stay the injunction. Generally, he said that the City Council had a statutory authority to ensure the health of all the residents of Dar es Salaam and argued that in the exercise of this authority the interests of specific groups had to be subordinated. Put limited group by dumping garbage in their midst rather than leave it to rot all over the city.
I took time to consider these arguments some of which are significant in their novelty. I think it is logical to begin with the basic issues raised by Mr. Maira.

Mr. Maira's first argument was that the application was wrongly brought under s. 95 of the civil Procedure Code and should have been brought under 0.1, r. 24 and 0.39, r. 5 thereof, Indeed in his main submissions and in reply to Mr. Maira, Mr. Kakoti suggested that the application was brought under s. 95 and sought to justify that position. I find this slightly perplexing. I say as because the chamber summons drawn and filed by Mr. Kakoti states that the application was being made under ss. 63(e), 93 and 95 of the Civil Procedure Code; but judging by his unequivocal submission on the subject, it is more than apparent that he abandoned ss. 68 (e) and 93.

Is it true that stay of execution and extension of stay are not specifically provided for? I do not think so. Mr. Maira was certainly incorrect whom he referred to 0.21, r. 24 and 0.39, r. 5 simply. The former applies to stay of execution by a court to which a decree has been sent, as opposed to the court passing the decree while with the latter provisions, a distinction has to be made between. 5 (1) and 5(2). The former applies to stay of execution by an appellate court while the latter is the proper provision for the court which passed the decree. **On the other hand, extension of time is, indeed, provided for under s. 93 of the Code. the position in law is that inherent jurisdiction under s. 95 is exercisable subject to the rule that if the Code does contain specific provisions which would meet the necessities of the case in question, such provisions should be followed and the inherent jurisdiction should not be invoked.** A court cannot make use of the special provisions of s. 95 where the applicant has his remedy provided elsewhere in the Code and has neglected to avail himself of it. **Joom v. Bhambia** (1967) EA. 326. In that case, which, ironically, was cited to me by Mr. Kakoti, this Court set aside an order for extension of stay of execution which was made of our s. 95. It follows, in my view, that application before me must similarly fail as it was brought under s. 95 while specific provisions governed the matter.

Mr. Maira's other point was that the Court had no jurisdiction to stay the injunction. I think, with respect, that there is merit even in this point, and I propose to approach it more broadly. First of all, the injunction in the instant case constituted the judgment and decree. the execution of an injunction such as this is the operation of the injunction itself; therefore, to suspend the operation of such an injunction is in effect to raise it. Execution of some injunctions is this different from, say, execution of a monetary judgement where the decree-holder may seek satisfaction by attachment and sale of some property belonging to the judgment where the decree-holder may seek satisfaction by attachment and sale of some property belonging to the judgment -debtor. In the latter case the attachment may be stayed without doing harm to the judgement for payment. It is not so with some injunctions where to stay execution would practically mean to vacate the judgement. I think, therefore, that there is need for prudence when a court embarks on staying and injunction lest, as in the instant case, it should result in licensing the very evils that the judgment is supposed to cure. Secondly, it is noted that in the instant case the court finally disposed of the suit and was no longer seized of any matter therein as of 1 September, 19899. The ruling and the decree based thereon do not leave anything for future settlement but are immediately effective, in other words, **the injunction was immediately operative the moment a decree was drawn and signed. In my view, the Court was from that moment functus officio and it was no longer in its power to**

turn back and suspend the injunction three weeks after the event. Such power could only be exercised by an appeallant Court. This matter is dealt with in MULLA (14th Edn.) whereit is said on page 771:

... it is only when the proceeding is still pending and met finally disposed of, that the Court has jurisdiction to grant extension of time ... So where a final decree terminating the action has been passed, the Court has no power to extend the period fixed therein. In illustration of this point it is stated that when a decree has been passed directing a **tenant to pay arrears of rent, the Court passing the decree has thereafter no power to grant extension of time for payment, because the Court has become functus officio and is no longer seized of the matter.** And so it should be on the facts of this case. Once the Court drew the decree on I September, 1989, that was the end of the road. I have therefore to agree with Mr. Maira that even this application is **incompetent** and I do not find myself privileged to follow the previous examples.

If I am held wrong in theforegoing, I still don't see the chances of the application even on merits. IU will point out at this juncture that the basis of the suit was not the mere act of dumping garbage at Tabata, rather, it was the methodology employed in that activity, which methodology was potentially of not already hazardous. Para 4 of the Plaint stated, and I quote.
4. That the continued use of the Tabata area poses real danger to the lives of the Plaintiffs and other users of the Port Access road (now Mandela Expressway) to wit
(a). Pollution of the air
(b). Heavy smoke blocks the motorists using the road and causes motor accidents
(c). Unscrupulous traders scoop the area and recover grain and other stuff which is unfit for human consumption.

What hapapens, as stated in para.3 of the Plaint, is that council agents upon tipping the garbage proceed to set it on fire. Heavy smoke rises therefrom and drifts across Mandela Expressway before engulfing the Tabata residential suburb. As stated at the beginning there was no defence to the suit, hence no part of the Plaint was controverted. But more specifically, the City Solicitors have consistently acknowledged before this Court, as Mr. Kakoti did at the hearing of this application, that garbage dumping at Tabata was, indeed, a health hazard to the neighbourihood. The pollution and the dangers posed by the activity are therefore acknowledged. In Mr. Kakoti's argument, however, it is a lesser evil to p;ollute and endanger lives at Tabata than to do so for the whole city, hence the supposed rationale of the application.

I will say [illegible] **never heard it anywhere for a public authority or even an individual to go to court and confidently seek for permission to pollute the environment and endanger peoples' lives regardless of their number.** Such wonders appear to be peculiarly Tanzanian, but I regret to say that it is not given to any court to grant such a prayer. Article 14 of our constitution provides that every person has a right to live and to protection of his life by the society. **It is therefore a contradiction in terms and a denial of this basic right deliberately to expose anybody's life to danger**

or, what is eminently monstrous, to enlist the assistance of the Court in this infringement.

But Mr. Kakoti's argument also seems to proceed on the premise that the council has statutory authority to take all measures as would induce to public health, which would include the minimisation of danger to public health. In effect he seems to say that an injunction should therefore not issue to restrain the council in the exercise of its statutory authority. The argument is certainly attractive but it is not available as the council did not defend the suit and the injunction is already granted. But if it is necessary to respond to the point, I would observe that Mr. Kakoti did not seek to say, and I am not aware, that the council has no latitude in the exercise of its statutory authority. There is authority for the proposition that where a latitude, a discretion, is left to the person clothed with authority, that person must not, in exercising it, create a authority, that person must not, in exercising it, create a nuisance. In Motropolitan Asylum District v. Hill (1881) 6 App. Cas. 1983, a local authority was given power to erect a smallpox hospital, the power being facultative and in no way compulsory. The local authority, in exercising it, created a hospital in a place where the infection constituted a source of danger to their neighbourhood. They were restrained by injunction from continuing to use it so as any longer to constitute a source of danger. So apart from the fact that an injunction will issue to restrain a local authority.

There is another dimension to these propositions the criminal dimension. What the council has been doing at Tabata does not only constitute a tort but it is also criminal. Section 185 of the Penal Code makes it an offence punishable with imprisonment for any person voluntarily to vitiate the atmosphere in any place so as to make it noxious to the health of person in general dwelling or carrying on ... in the neighbourhood or passing along a public way. This is the offence known as fouling air, the offence of obstructing a public way under s. 239 of the Code could similarly be cited in this context. In coming to court seeking to the permitted to continue using the Tabata site the way it has poor doing, the council is virtually asking for a licences to contravene the law. I am not aware of any authority, and none was cited to me, which authorises a court of law to sanction criminal activity, hold on the contrary, that a court cannot authorise an offence.

In bringing this application it was claimed that the council was seeking justice. Justice in this case in wholly on the side of Tabata resides, and the council in effect came to Court to enlist the Court's assistance in perpetuating an injustice. Ironically, the duty of the Court is to protect the individual from the excess of executive power and in this duty it should not be seen to fail or falter. In the Roberts case cited earlier, this to say, with which I agree:

How is the Court to deal with a man who says, "I admit I have no right to do this, but I intend to go on doing it all the same"? If he is infringing the plaintiff's it is the duty of the Court to protect the plaintiff. I know of no duty of the Court, which it is more important to observe them its power of ... bodies within their rights. The moment dobies exceed their rights they do so to the injury and apprehension of private individuals, and these persons are entitled to be protected from excesses from such operations of public bodies.

In sum, I am led to the inevitable conclusion that, even from the point of view of merits, it **would be injudicious, illegal and oppressive to yield to this application and grantthe extension prayed for.**

It certainly should be worrying to the City Fathers and probably puzzling to others as what happens to the city garbage in the light of these pronouncements. I am personally fortunate in being spared of any tribulation. I think, with respect, that if the council with all the willing contractors at Mbagala, cannot make up a track of 1.3 km, roughly 1,300 paces, in a day of two (and they have already had twelve days so far), people will have reason to ask whether there is a City Council worth the name.

For all I have endeavoured to state, I dismiss the application with costs.

K.S.K. LUGAKINGIRA
JUDGE
DAR ES SALAAM
9th September, 1991